



File No: EXP202400876

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On June 24, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against WWPD CINVENTO INTERNATIONAL PATENT TRADING, S.L. (hereinafter, the claimed party), through the Agreement that is transcribed:

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File No: EXP202400876

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST:

A.A.A. (hereinafter, the claiming party) on December 5, 2023, filed a complaint with the Spanish Agency for Data Protection through its representative. The complaint is directed against WWPD CINVENTO INTERNATIONAL PATENT TRADING, S.L. with NIF B88586334 (hereinafter, the claimed party or CINVENTO). The reasons on which the complaint is based are as follows:

The claiming party states that it has received postal advertising from an entity with which it has not had a commercial relationship nor has contacted previously.

It indicates that the data used in the communication comes from the Official Bulletin of Industrial Property (BOPI), as all the technical information included is found in the announcements and contents of the aforementioned source.

The complaint refers to a report from the AEPD (No: 190089/2018), which responds to a query from the Official College of Industrial Property Agents. In the referred query, it was asked whether industrial property agents could use the data of individuals published in the Official Bulletin of Industrial Property (BOPI) to contact them for "promotional practices of their activity." In summary, the report states: "(...) against the legitimate interest alleged by the consultant to want to use the personal data published in the BOPI to promote their activities as industrial property agents, the interest or fundamental right to the protection of personal data of the interested party must prevail, who has not voluntarily made such data public in the BOPI, but rather its publication is imposed by law for the purposes established therein, which are to allow third parties to oppose the application or registration of the trademark."

Along with the complaint, the following documents are provided:

☐ Postal communication dated July 11, 2022 received.

☐ Written authorization of representation by the claimant, accompanied by a copy of their National Identity Document (DNI).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to WWPD CINVENTO INTERNATIONAL PATENT TRADING, S.L., so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements established in the data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) through electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on 02/10/2024, as stated in the certificate in the file.

Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, an informational copy was sent by postal mail, which was duly notified on 02/20/2024. In this notification, the obligation to communicate electronically with the Administration was reminded, and the means of access to such

notifications were informed, reiterating that, henceforth, notifications would be made exclusively by electronic means.

On 03/21/2024, a response letter was received by this Agency, which, in summary, indicates the following:

CINVENTO, with the aim of making known its services for facilitating the commercialization of inventions, claims to have decided to use the information provided by the Spanish Patent and Trademark Office (OEPM) and especially the Official Bulletin of Industrial Property (BOPI). The BOPI is a publicly accessible publication, and one of its objectives is to disseminate the technological advances (inventions) that are being protected, as well as to identify the owners of such inventions in order for third parties to...

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they may contact them if they are interested, for example, in acquiring a license for said invention. CINVENTO understands that data protection has not been violated, as the data is published in the BOPI. In the opinion of the responding party, it has been obtained lawfully, given that it has been published in said Bulletin with the full knowledge of the owner of the invention.

It is noteworthy that in their letter they referred to the claimant as a representative of one of the multiple companies for which he is an attorney (including a list of said companies in the document). The invention published in the BOPI refers to blood treatment, which is the subject of the companies listed. The responding party recalls that according to the provisions of Article 1 of the LOPDGDD, legal entities would be excluded from the scope of said Law. They then refer to Article 81 of the LOPDGDD (right to universal access to the Internet).

They also mention Article 9 of the GDPR “Processing of special categories of personal data,” particularly paragraph 2 e), which states the following:

“2. Paragraph 1 shall not apply where one of the following applies:

e) the processing concerns personal data which the data subject has made manifestly public;”

They point out that the processing of personal data is not prohibited, especially those data that have been publicly displayed with the aim of being used by third parties who wish to contact the holders of rights related to patents and utility models, for example, to negotiate a technology transfer agreement. The document mentions Article 17.2 of the GDPR (right to be forgotten) and highlights that the claimant had not exercised, either prior or subsequently, the right to object or to erase personal data in order to stop receiving further communications from CINVENTO.

CINVENTO concludes that it has only contacted the claimant as an attorney for a series of companies on one occasion.

Furthermore, it emphasizes that one of the best ways in which the company can promote its services is through the use of an informative postal letter. This letter serves as a marketing strategy in which potential clients are presented with the services offered.

The responding party identifies the market of potential clients and subsequently sends them this type of letter to show them what they can offer. CINVENTO asserts that it has not violated any rights, as this is information previously published by its owner.

THIRD: On March 5, 2024, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

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FOURTH: According to the report obtained from the AXESOR tool, the entity WWPD CINVENTO INTERNATIONAL PATENT TRADING, S.L. is a microenterprise established in 2020, with a turnover of

(...) euros in 2020.

LEGAL GROUNDS

I

Competence

According to the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Obligation breached

Article 6.1 of the GDPR establishes the circumstances under which the processing of personal data may be considered lawful, as follows:

"1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person.
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

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f) The processing is necessary for the satisfaction of legitimate interests pursued by the data controller or by a third party, provided that those interests do not override the interests or the fundamental rights and freedoms of the data subject requiring the protection of personal data, particularly when the data subject is a child.

The provisions in paragraph f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.

In relation to the lawfulness of processing, it is necessary to refer to Recital 40 of the aforementioned GDPR, which states:

"For processing to be lawful, personal data must be processed with the consent of the data subject or on another legitimate basis established in accordance with the law, whether in this Regulation or under another law of the Union or of the Member States to which this Regulation refers, including the necessity of complying with a legal obligation applicable to the data controller or the necessity of performing a contract to which the data subject is a party or for taking steps at the request of the data subject prior to entering into a contract."

The complainant has submitted, along with their complaint, a document dated July 11, 2022, in which CINVENTO offers its services. In the referred text, the following is indicated:

"CINVENTO

Madrid, 11/07/2022

A.A.A.

***ADDRESS.1

"(...)"

(...)

(...)

(...)

(...)

(...).

I hope that the explanation provided in this email has been of interest to you. If you consider it necessary, you can call me at (...) or write to me at (...) if you have any questions.

Best regards.”

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This document contains personal data of the complainant, including their name, both surnames, and their full address. It also mentions an invention made by them.

CINVENTO, in the document prepared in response to the transfer of the complaint and request for information by the AEPD, acknowledges that the personal data of the respondent appearing in the informative postal letter dated July 11, 2022, comes from the Official Bulletin of Industrial Property (BOPI):

Next, an analysis of the report from the Legal Department of the AEPD N/Ref:190089/2018 will proceed, prepared as a result of a request for a report from the Official College of Industrial Property Agents.

The inquiry raises the question of whether industrial property agents can use the data of individuals published in the Official Bulletin of Industrial Property (BOPI) to contact them to carry out "promotional practices of their activity," that is, to offer their services to those individuals.

The report highlights: “The statement of the inquiry, as it is posed, reveals that it refers to individuals with whom there has been no prior client relationship, since (...) what is intended is the promotion of their activities to attract new clients.”

The cited report analyzes the possible application of legitimate interest (Article 6.1 f) of the GDPR) as a basis for legitimizing the processing. Among other aspects, it highlights:

“(…). In the GDPR, for the existence of legitimate interest as a legal basis for processing, it is not required (i) that the data appears in publicly accessible sources, (ii) nor is it established for the legitimacy of this cause that the fundamental rights and freedoms of the data subject are 'not violated', but rather a balancing must be carried out to determine the prevalence between the alleged legitimate interest and the 'interests, or the rights and fundamental freedoms' of the data subject requiring the protection of personal data (Art. 6.1 f) GDPR).

This highlights the standard that must be followed in determining such prevalence. Firstly, the protection regime of the data subject in the GDPR against the data controller who intends to use their personal data based on a legitimate interest is more intense in the GDPR than in the LOPD, since in the latter, to allow legitimate interest, it was sufficient that their rights or freedoms were not 'violated', whereas in the regime of the GDPR, it is sufficient that their interests, rights, or freedoms prevail over that legitimate interest. Note that the word interests is added, as opposed to the violation of the necessary rights or freedoms previously in the LOPD. And that no violation is necessary, but it is sufficient that their interests, rights, or freedoms are affected, even if slightly, as long as that interest prevails over the alleged legitimate interest.” (the emphasis is from the AEPD).

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Next, the report focuses on the origin of the publication of the personal data of the interested parties in the BOPI, concluding that the publication of their data in the aforementioned Bulletin does not depend on their will, but is imposed by legal mandate:

“It seems necessary at this moment to determine what the origin of the publication of the personal data of the interested parties in the official bulletin of industrial property is, and this can only be the establishment of a legal obligation determined by industrial property regulations so that other interested parties in the granting or, denial, etc. of the industrial property right can oppose, if it suits their rights. This is evident, for example, from Article 18.3 of Law 17/2001, of December 7, on Trademarks, which requires that upon receiving the trademark application, the Spanish Patent and Trademark Office shall proceed to publish it in the official bulletin of industrial property, and must necessarily include the name and address of the applicant and the name and address of the representative, if any. Subsequently, Article 19 of the same law establishes that once the trademark application has been published, any person who considers themselves harmed may oppose the registration of the same. Ultimately, this is a restriction on the fundamental right to the protection of personal data of the applicant, and, where applicable, of the representative, justified by the fact that third parties interested in the trademark may oppose its registration. However, this publication of personal data does not depend on the will of the trademark applicant or the representative, but is imposed by law, which cannot be irrelevant when determining the possibility of further uses of such information.” (the underlining is by the AEPD).

The report of the Legal Office of the AEPD concludes that the interest or fundamental right to the protection of data of the interested party prevails over the legitimate interest:

“This determines that, in the specific case submitted for consultation, and without the need to establish at this moment a general theory that may be understood as applicable to other cases of publicity in bulletins, as it will be necessary to consider the specific case, the restriction or limitation on the personal data of the interested party is imposed by law for a legitimate purpose. Therefore, this agency considers that in the present case, against the legitimate interest claimed by the consultant to want to use the personal data published in the BOPI to promote their activities as industrial property agents, the interest or fundamental right to the protection of the personal data of the interested party must prevail, who has not voluntarily made such data public in the BOPI, but whose publication is imposed by law for the purposes established therein, which are to allow third parties to oppose the application or registration of the trademark.” (the underlining is by the AEPD).

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The report from the Legal Cabinet of the AEPD also highlights that personal data would be used for a purpose different from that for which it was initially collected, which is not foreseeable for the data subject:

“Indeed, the use of personal data whose publication is mandatory by law in the official bulletins of industrial property would be used for a purpose different from that for which the data was initially collected. Therefore, to determine whether the processing for this new purpose is compatible, the provisions of Article 6.4 of the GDPR must be taken into account, interpreting it in accordance with Recital (47) of the GDPR, which establishes the existence of a relevant and appropriate relationship between the data subject and the controller for such a purpose, as in situations where the data subject is a client of the controller. Well, as has been commented at the beginning, there is no relationship in the present case between the controller and the data subject whose data has been published in the BOPI, so the latter cannot reasonably foresee, at the time in the context of the collection of personal data, that processing for such a purpose may occur, or in other words, as stated in Recital 47, the interests and fundamental rights of the data subject should prevail over the interests of the data controller when the data subject does not reasonably expect further processing to take place. And in the present case, given that, as has been repeatedly expressed, the processing of personal data consisting of publication in the official bulletins of industrial property is mandatory by law, it is independent of the will or consent of the data subject, which cannot be denied, it can be understood that their rights and freedoms and interests prevail over the legitimate interest of the controller. Consequently, in this case, there would be no prevailing legitimate interest of the controller over the

rights of the data subject that would legitimize the intended processing of personal data.” (the underlining is from the AEPD).

Finally, the report from the Legal Cabinet of the AEPD clarifies that with the GDPR, one cannot speak of a legal concept of a source of public access as existed in Organic Law 15/1999, of December 13, on the Protection of Personal Data (LOPD):

“As for the question of whether the BOPI has the character of a source of public access, and as the inquiry adequately states, it was already mentioned in the 10th annual session that with the GDPR, one cannot speak of a legal concept of a source of public access as existed with the previous LOPD. Article 14.1 f) of the GDPR only mentions this concept to establish the obligation of the data controller to provide the data subject with information on whether their personal data comes from sources of public access, but without defining these. Therefore, to summarize up to this point or the sense of this report, both the personal data...”

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The data contained in the BOPI, whether they originate from a public access source or not, does not change the regime or the basis of legitimacy for the processing of such personal data, which would be as stated up to this point. Therefore, as mentioned, it is considered that the legitimate interest of the data controller would not prevail in this case over the interest, right, or fundamental freedom to the protection of the personal data of the data subject. Consequently, there would be no legal basis legitimizing the processing of personal data under Article 6.1 f) GDPR, and therefore, since they cannot be processed, there would be no need to provide any information (precisely because the controller cannot proceed with the processing of the data) as provided for in Article 14 GDPR, since the need to provide such information only arises when personal data is processed.” (the underlining is from the AEPD).

In the case examined in this file, a series of relevant elements are observed:

- CINVENTO has processed personal data of the complainant in a document dated July 11, 2022, which it calls "informative postcard."
- The aforementioned letter is a communication in which CINVENTO presents to the complainant the services that the company offers, trying to attract them as a client.
- CINVENTO acknowledges that the data appearing in the document of July 11, 2022, comes from the Official Bulletin of Industrial Property (BOPI).
- The personal data was published in the BOPI as a result of a legal mandate: As reflected in the report from the Legal Department of the AEPD, there is a legal mandate that provides for the publication of such personal data in the BOPI. That is to say, the publication of the personal data of the complainant in the BOPI occurred because the law required it, not because the complainant voluntarily decided to make such personal data public or accessible to the general public.
- The personal data has been used (processed) deviating from the legally intended purpose for its publication in the BOPI: The purpose for which the complainant's personal data was published in the BOPI was to allow other interested parties in the granting, concession, or denial, etc., of the industrial property right to oppose, if they deemed it appropriate. However, CINVENTO has processed such data for a different purpose (sending an informative postcard to the complainant offering its services).
- The processing was not foreseeable for the complainant: Under these circumstances, it cannot be accepted, as an exempting cause of liability, the fact that the complainant did not exercise prior or subsequently the right to the deletion of their personal data, since CINVENTO should not have processed such personal data.

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- The informative postcard sent by CINVENTO is addressed to the complainant as an individual, not as a representative of companies: It includes the complainant's name, surname, and address. At no time is the position they hold in the companies for which they are a representative mentioned, nor the names of those companies.

- In the analyzed case, it would not be appropriate to invoke the exception provided for in Article 9.2 e) of the GDPR, as it does not involve special categories of personal data. Therefore, it is considered that there is evidence that the processing of personal data of the complainant carried out by CINVENTO would have been done without a legitimizing cause as contemplated in Article 6.1 of the GDPR.

III

Typification and qualification of the infringement

The known facts could constitute an infringement, attributable to WWPD CINVENTO INTERNATIONAL PATENT TRADING, S.L., typified in Article 6.1 of the GDPR.

For the purposes of the statute of limitations for infringements, the alleged infringement prescribes after three years, in accordance with Article 72 of the LOPDGDD, which qualifies the following conduct as very serious:

"Article 72. Infringements considered very serious.

1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and will prescribe after three years, which imply a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679 being met.

(...)"

IV

Proposal for sanction

This infringement may be sanctioned with a fine of up to €20,000,000.00 or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount, in accordance with Article 83.5 of the GDPR.

Furthermore, it is considered appropriate to graduate the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR, which provides the following:

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"2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, severity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected parties and the level of damages they have suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the data controller or processor to mitigate the damages suffered by the affected parties;

d) the degree of responsibility of the data controller or processor, considering the technical or organizational measures they have applied under Articles 25 and 32;

e) any previous infringement committed by the data controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular

whether the data controller or processor reported the infringement and, if so, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the data controller or processor in relation to the same matter, compliance with such measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

In relation to letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, “Sanctions and corrective measures,” establishes that:

“2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

a) The continued nature of the infringement.

b) The connection of the infringer's activity with the processing of personal data.

c) The benefits obtained as a result of the commission of the infringement.

d) The possibility that the conduct of the affected party may have induced the commission of the infringement.

e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.

f) The impact on the rights of minors.

g) Having, when not mandatory, a data protection officer.

h) The voluntary submission by the data controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any affected party.”

According to the transcribed provisions, and without prejudice to the outcome of the instruction of the procedure, for the purpose of determining the amount of the fine to be imposed in this case for the infringement classified in Article 83.5.a) and Article 6.1 of the GDPR for which the claimed party is responsible, an initial assessment considers it appropriate to establish a fine of 500.00 euros.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against WWPD CINVENTO INTERNATIONAL PATENT TRADING, S.L., with NIF B88586334, for:

- The alleged infringement of Article 6.1 of the GDPR, classified in Article 83.5 of the GDPR.

SECOND: TO APPOINT B.B.B. as instructor and C.C.C. as secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the claimant and its documentation, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection in the proceedings prior to the initiation of this sanctioning procedure, in particular, the evidence collected by the AEPD regarding the content of the report from the Legal Advisory Office of the AEPD (No.: 190089/2018).

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be, for the alleged infringement of Article 6.1 of the GDPR, classified in Article 83.5 of that regulation, an administrative fine of 500.00 euros, without prejudice to the outcome of the instruction.

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FIFTH: NOTIFY this agreement to WWPD CINVENTO INTERNATIONAL PATENT TRADING, S.L., with NIF B88586334, granting a hearing period of ten working days for it to submit allegations and present any evidence it deems appropriate. In its written allegations, it must provide its NIF and the file number that appears in the heading of this document.

If no allegations are made within the stipulated period regarding this initiation agreement, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for submitting allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 400.00 euros, resolving the procedure with the imposition of this sanction.

Likewise, it may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at 400.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted for submitting allegations to the initiation of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at 300.00 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction.

In the event that it opts to proceed with the voluntary payment of any of the amounts indicated above (400.00 euros or 300.00 euros), it must make it effective by depositing it into account no. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it is entitled.

Furthermore, it must send the proof of payment to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. If this period elapses without a resolution being issued and notified, it will result in its expiration and, consequently, the filing of actions; in accordance with the provisions of Article 64 of the LOPDGDD.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to it will be carried out exclusively electronically, through the Single Enabled Electronic Address (dehu.redsara.es), and that, if it does not access them, its rejection will be recorded in the file, considering the procedure completed and continuing with the process. It is informed that it can identify an email address before this Agency to receive the notice of availability of notifications and that the lack of practice of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On July 2, 2024, the respondent has proceeded to pay the sanction in the amount of 300 euros, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted for submitting allegations to the initiation of the procedure, entails the renunciation of any action or appeal in the administrative route against the sanction and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

LEGAL GROUNDS

I

Competence

According to the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, this organic law, and the provisions...

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regulatory provisions issued in its development and, insofar as they do not contradict them, with a subsidiary nature, by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when a pecuniary sanction can be imposed alongside a non-pecuniary sanction but the latter has been justified as inappropriate, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202400876, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to

WWPD CINVENTO

INTERNATIONAL PATENT TRADING, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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